

Ishrat And Another vs Ut Of Jk & Ors on 24 February, 2026

Serial No. 172
Supp. Cause List

IN THE HIGH COURT OF JAMMU & KASHMIR AND LADAKH
AT SRINAGAR

WP(C) No. 665/2025

ISHRAT AND ANOTHER

...Petitioner(s)/Appellant(s).

Through: Ms. Anjum Ara, Advocate
Vs.

UT OF JK & ORS

...Respondent(s).

Through: Mr. Aabid Hamid Pandit, Advocate for R-5
None for 1 to 4

CORAM: HON'BLE MR. JUSTICE MOHD YOUSUF WANI, JUDGE
JUDGMENT

24.02.2026

1. The petitioners having approached this Court in person as well as through their learned counsel on 25.03.2025 by way of the instant writ petition bearing WP(C) No. 665/2025, sought and were granted protection on the apprehension of threat, harassment and interference on the part of respondent No. 5, being the father of petitioner No. 1, on account of the alleged marriage of petitioner No. 1 with the petitioner No. 2 out of her own free will and choice.

2. The satisfaction recorded by this Court regarding the decision of the petitioner No. 1 being out of her own free will and choice, without any undue influence coercion, is evident from paragraph 2 of the first interim order dated 25.03.2025 passed in the matter while granting interim direction for protection of the petitioners. In proof of her date of birth as 16.02.2006, the Aadhar Card of the petitioner No. 1 came to be relied upon. Besides, copies of the age certificates purportedly issued by the District Medical Board, Srinagar under the signature of the Chief Medical Officer bearing Nos. CMO/MB/SGR/ 1385 dated 20.03.2025 and CMO/MB/SGR/1386 dated 20.03.2025 also came to be furnished WP(C) No. 665/2025 Page 1 by the petitioners in support of their age respectively shown in the said certificates as 20 years and 22 years.

3. Prior to the next date of hearing fixed as 04.04.2025, an application bearing CM No. 1843/2025 supported by an affidavit and annexed documents, came to be filed on behalf of the respondent No. 3-SHO Police Station, Harwan, Srinagar seeking modification of the interim protection order dated 25.03.2025 on the ground that date of birth of the petitioner No. 1, as per her school records, is 10.02.2010 and thus being a minor. It was, inter alia, stated in the said application that the petitioner No. 1 had been kidnapped by the petitioner No. 2 with intention to commit rape upon her.

4. Subsequent to the filing of the aforesaid application by respondent No. 3, it was felt imperative to determine the age of petitioner No. 1. Accordingly, vide order dated 04.04.2025, the Principal,

Government Medical College (GMC), was directed to constitute a Medical Board for age determination of petitioner No. 1.

5. Though the Principal, GMC concerned, notified the date for examination of petitioner No. 1 before the competent Medical Board pursuant to the directions of this Court, petitioner No. 1 is reported to have not made herself available for the said examination, and the process remains pending.

6. Respondent No. 5, who happens to be the father of petitioner No. 1, has also filed objections to the petition and has, inter alia, pleaded that petitioner No. 1 is a minor and therefore lacks the legal competence to contract a valid marriage or to determine her place of residence independently without the consent of her lawful guardian. It has further been submitted that the date of birth of petitioner No. 1, as per her WP(C) No. 665/2025 Page 2 school records, is 10.02.2010, thereby substantiating the plea that she is a minor.

7. The learned counsel for pvt. Respondent No. 5 also informed the Court on 09.02.2026 that the petitioner No. 1 is presently residing at her parental home, as she has already after being harassed by the petitioner No. 2 and his family returned to the company of her parents. It was also informed that the petitioner No. 1 has already delivered a baby.

8. It is believed by the Court that since the petitioner No. 1 is reported to have delivered a baby, as such, she could not have made herself available before the Medical Board on the relevant date.

9. The pvt. Respondent No. 5, who happens to be the father of the petitioner No. 1, filed his objections to the petition and has, inter alia, resisted the same on the grounds that the petitioner No. 1 is a minor. That the marks certificate/school record issued by the District Institute of Education and Trainings (DIET), which is stated to be the most reliable and primary piece of evidence for determination, clearly records her date of birth as 10.02.2010. That as per her date of birth recorded in the school certificates, she is presently 15 years old and was not competent to contract a marriage under the provisions of the Prohibition of Child Marriage, Act, 2006 (hereafter referred to the "PCMA" for short).

That the writ petition filed on the pretext of seeking protection cannot be used to sanction a relationship of marriage which is voidable under the PCMA. That this Court, under its jurisdiction, has a paramount duty to protect the welfare of a minor who needs to be reverted back to the company of her parents.

WP(C) No. 665/2025 Page 3 That he fully supports the order dated 04.04.2025 passed by this Court directing the constitution of the Medical Board to determine the age of the petitioner No. 1 on account of the clear discrepancy between the claimed age on the basis of Aadhar Card and school record. That the findings of the Medical Board, along with the conclusive school records, will solidify the claim of the minority. That the interim protection granted by this Court vide order dated 25.03.2025 and extended by the subsequent order dated 04.04.2025 was premised on the belief that the petitioner No. 1 was a major as per the Aadhar Card. That the petitioner No. 1 has since voluntarily left the company and custody of petitioner No. 2 and has returned to her parental home.

That the subsequent voluntary action on the part of the petitioner No. 1 clearly demonstrates that the apprehension of harassment from her family, as alleged in the petition, may have been the outcome of undue influence and threat on the part of the petitioner No. 2. That the petitioner No. 1 being the minor has to be in the custody of her parents. That the respondent No. 5 being the father of the petitioner No. 1 is highly interested in her welfare and protection. That as per the provisions of Section 94 of the Juvenile Justice (Care & Protection of Children) Act, 2015 relating to the age determination, the proof regarding date of birth as per the matriculation or equivalent certificate or a certificate from a school or local body is recorded as authentic. That the Hon'ble Apex Court in a case titled "Saroj & Ors Vs. Iffco-Tokio General Insurance Co. & Ors" (Civil Appeal No. 012077-012078 of 2024) (2024 INSC 819), has held that Aadhar Card is not a conclusive as proof of date of birth. That school leaving certificates need to be given preference as Aadhar serves as a WP(C) No. 665/2025 Page 4 unique identification tool and should not be treated as conclusive proof especially when other statutorily recognized documents are available. That the Hon'ble Apex Court in a case titled "Society for Enlightenment and Voluntary Action & Ors. Union of India & Ors." (2024 INSC 790) (Writ Petition (C) 1234 of 2017, has held that the child marriages violates constitutional rights and issued guidelines to prevent such practices. That the extraordinary writ jurisdiction of the High Court under Article 226 of the Constitution of India, though wide, cannot be invoked to seek sanction or protection to an act/relationship that is in violation of panel and social legislations, especially the laws protecting children from exploitation.

10.The respondent No. 5 has accordingly prayed for dismissal of the writ petition as being not maintainable on the ground of minority of the petitioner No. 1 as evidenced by her school certificate issued by the DIET, which has otherwise become infructuous and not maintainable due to voluntary return of the petitioner No. 1 to her parents.

11.Today, the petitioners though appeared in person but now riven- asunder.

12.It was submitted by the petitioner No. 1 in the open Court that she earlier appeared before this Court with the petitioner No. 2 seeking protection, but she was in a state of utter threat and undue influence, as the petitioner No. 2 had threatened her that in case she will not accompany him to this Court, he will upload her photographs on the social media and will thereby outrage her modesty. She further submitted that she is a minor and that her date of birth is 10.02.2010. She also submitted that she is presently residing at her parental home.

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13.The learned appearing counsel for the petitioner No.2, however, vehemently submitted that the petitioner No. 1 has herself appeared before this Court on 25.03.2025 at the first hearing of the case alongwith the petitioner No. 2 and sought protection at the hands of the respondent No. 5, who happens to be her father. That her statement given before the Court verbally at that time was voluntary and without any sort of threat or pressure, as is apparent from paragraph 2 of the order dated 25.03.2025. She further submitted that the Court was satisfied regarding the date of birth of the petitioner No. 1 as recorded in her Aadhar Card. Learned counsel also submitted that petitioner no. 1 after leaving the home of the petitioner No. 2, made the later to file a petition before the

appropriate civil court, which is pending disposal.

14. Learned counsel also submitted that the police is even unnecessarily harassing her despite being aware that she being an Advocate is an officer of the Court and that her law firm has taken a brief of the petitioners.

15. As rightly contended by the learned counsel for respondent No. 5, the instant writ petition, in the backdrop of the present development stands rendered infructuous.

16. The Courts under the circumstances cannot extend protection even to the petitioner No. 2.

17. Since there are allegations that the petitioner No. 2, under threat and undue influence, made the petitioner No. 1 to accompany him to this Court on 25.03.2025 for seeking protection against them on account of their alleged marriage, and that she is minor as her date of birth being 10.02.2010, therefore, the matter needs to be investigated by the respondent No. 3, i.e, SHO Police Station, Harwan, Srinagar, who has WP(C) No. 665/2025 Page 6 already registered an FIR in respect of the matter. The genuineness of the age certificates purported to have been issued by the District Medical Board, Srinagar and copies whereof have been placed on the record of this case file also needs to be ascertained during the investigation of the criminal case.

18. The Hon'ble Supreme court of India in case titled "Doli Rani Vs. Manish Kumar Chanchal" Transfer Petition (C) No. 2043/2023 decided on 19.04.2024 while dealing with the alleged marriage between the concerned parties being regulated by Hindu Personal law inter alia laid down:-

"The Hindu Marriage Act, 1955 solemnly acknowledges both the material and spiritual aspects of this event in the married couple's lives. Besides providing a mechanism for registration of marriages in order to confer the status of a married couple and acknowledge rights in personam and rights in rem, a special place is given to rites and ceremonies in the Act. It follows that the critical conditions for the solemnizing of a Hindu marriage should be assiduously, strictly and religiously followed. This is for the reason that the genesis of a sacred process cannot be a trivial affair. The sincere conduct of and participation in the customary rites and ceremonies under Section 7 of the Hindu Marriage Act, 1955 ought to be ensured by all married couples and priests who preside over the ceremony. The promises made to each by the parties to a Hindu marriage and the oath taken by them to remain friends forever lay the foundation for a life-long commitment between the spouses which should be realized by them....."

On the analogy of the law laid down by the Hon'ble Supreme Court in the aforesaid case, a marriage between a man and a woman being regulated by the Muslim Personal Law should conform to the religious rites and ceremonies, especially as to performance of Nikah Ceremony WP(C) No. 665/2025 Page 7 and the consent of guardian where the same is necessary, as per the regulating school of Muslim law.

19.The petitioner No. 1 as also respondent No. 5 being her father, are at liberty to invoke the remedy under law, if needed, by them to discredit any contention of the petitioner No. 2 regarding his marriage with the petitioner No. 1.

20.This writ petition is accordingly dismissed alongwith all miscellaneous applications with the vacation of the interim orders.

(MOHD YOUSUF WANI) JUDGE SRINAGAR 24.02.2026 ARIF Whether the Judgment is reportable? Yes Whether the Judgment is speaking? Yes WP(C) No. 665/2025 Page 8